

ioye, Earl of Deuonshire,¹ viz. :—Lord Danuers,² Earthe & Wakeman, executors, and Sir Henry Baker⁴ and Sir Richard Champernowne, claiming to be the heirs of the said Earl of Deuonshire, now dead without issue, and the question now was which of them is the heir to the Earl. A Jury was now returned to find the office and the heir. Serjeant Forster, Hide, Thomas Crewe, Richard Martin and Sir Henry Mountague, the Recorder, were of Counsel with the executors; Serjeant Nicholls and Whitlocke with Sir Richard Champernowne; George Crooke and Richardson with Sir Henry Baker. The Counsel for the executors moved that the first thing according to the writ is to inquire what lands descend, for if no lands descend, the heir shall not sue out livery, but by previous consent they may proceed, and also they may examine their witnesses.

'The pedegree produced for S^r Rich^{de} Champernoun was that Charles, [8th] Lord Mountioye, was sonne to James, [6th] Lord Mountioye, who was sonne to Charles, [5th] Lord Mountioye, who was sonne to William, [4th] Lord Mountioye. Charles, the laste Lord Mountioye, Earle of Deuonshire, dyed wthoute yssue, so there the dyrecte lyne ended; & now theise challenge in the Collaterall lyne. Constance was syster to W^m [4th Baron], &

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SHIRE'S CASE

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Sir Richard
Champer-
noun's case

¹ Charles Blount, 8th and last Baron Mountjoy, succeeded his brother, William, in 1594; he was elected a Knight of the Garter in 1597; General of the Army in Ireland and Viceroy (with the title of 'Lord Deputy') 1600 to 1603, and as 'Lord Lieutenant' from 1603, having during that period subjugated the great Irish rebellion under the Earl of Tyrone. He was, in reward, created Earl of Devonshire, 21 July, 1603. He went through the ceremony of marriage, 26 Dec. 1605, with Penelope, Lady Rich [see *ante*, p. 172, and Appendix IV.], dau. of Walter Devereux, Earl of Essex; she had obtained an ecclesiastical divorce *a mensa et thoro*, 15 Nov. 1605, from Robert, Lord Rich, her husband. The Earl died without legitimate issue 3 April, 1606. *Complete Peerage*, by G. E. C.

² Sir Henry Danvers, 2nd son of Sir John Danvers of Dantsey, co. Wilts, and of Danby, co. York, was created Baron Danvers of Dantsey, 21 July, 1603, and Earl of Danby, 5 Feb. 1625-6. His elder brother, Sir Charles Danvers, was attainted for participation in Essex's rebellion in 1602. See *Complete Peerage* by G. E. C. See also the case of Danvers v. Long, *ante*, pp. 49, 61, and Appendix III.

³ Blank in MS.

⁴ Sir Richard Baker of Sisinghurst, co. Kent, knight, mar. Catherine dau. and heir of John Tirell, youngest son of Sir Thomas Tirell, knight; he was succeeded by his eldest son, John, whose eldest son was Henry Baker, the claimant in the text. See Burke's *Extinct Baronetage*.